

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Helen Terndrup	Team: Team # 2	CCRB Case #: 201016143	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 11/22/2010 8:39 PM	Location of Incident: § 87(2)(b) [REDACTED]	Precinct: 44	18 Mo. SOL 5/22/2012	EO SOL 5/22/2012	
Date/Time CV Reported Wed, 11/24/2010 11:25 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 11/24/2010 11:25 AM		
Complainant/Victim	Type	Home Address			
[REDACTED]	[REDACTED]	[REDACTED]			
Witness(es)	Home Address				
[REDACTED]	[REDACTED]				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Gregory Kennedy	26842	948364	PBBX		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Alberys Garcia	27908	945747	044 PCT		
2. SGT Gabriel Diaz	00588	925411	PBBX		
3. POM Anthony Johnson	27146	948359	PBBX		
Officer(s)	Allegation			Investigator Recommendation	
A.POM Gregory Kennedy	Discourtesy: PO Gregory Kennedy spoke obscenely and rudely to § 87(2)(b) [REDACTED]			[REDACTED]	

Case Summary

On November 24, 2010, § 87(2)(b) called the CCRB to file this complaint. At approximately 8:39 p.m. on November 22, 2010, § 87(2)(b) and his wife § 87(2)(b) were in the emergency room waiting area at § 87(2)(b) in the Bronx after a neighbor's son had been shot. PO Gregory Kennedy, PO Alberys Garcia, and Sgt. Gabriel Diaz asked § 87(2)(b) to leave. The following allegation resulted:

Allegation A) Discourtesy: PO Gregory Kennedy spoke obscenely and rudely to

§ 87(2)(b)

§ 87(2)(g)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male who has black hair and dark brown eyes. He is 6'0" tall and weighs 204 pounds. § 87(2)(b) is § 87(2)(b).

§ 87(2)(b) provided his first statement regarding this incident when he called the CCRB on November 24, 2010, to file this complaint (encl. 3A-B). At approximately 8:39 p.m. on November 22, 2010, § 87(2)(b) and his wife § 87(2)(b) were at § 87(2)(b) in the Bronx to support a neighbor who had been shot. An officer named "PO Kenny" or "PO Kennedy" told § 87(2)(b) to leave because only family members could be there. PO Kennedy, as well as officers named "PO Garcia" and "PO Diaz," grabbed § 87(2)(b) and threw him out of the hospital. § 87(2)(b) told his wife, § 87(2)(b) to go inside and get the officers' names. § 87(2)(b) went with her to point them out. PO Garcia, PO Diaz and PO Kennedy grabbed § 87(2)(b) by his shoulder and threw him against a wall outside. He sustained no injuries. PO Kennedy told § 87(2)(b) "I told you not to fucking come back in the hospital. Now your motherfucker ass is under arrest." § 87(2)(b) provided PO Kennedy's tax number as 948364 and PO Garcia's shield number as 27908. PO Diaz hid his badge by turning his back to § 87(2)(b) and walking away. PO Diaz never provided his name or shield number.

CCRB Statement

On December 2, 2010, § 87(2)(b) was interviewed at the CCRB (encl. 4A-E). On November 22, 2010, at about 7:30 p.m., four people were shot near § 87(2)(b)'s building, § 87(2)(b) in the Bronx. One of the victims was § 87(2)(b)'s neighbor's son. There was a large crowd of about forty people, creating a commotion. § 87(2)(b) was arguing with his § 87(2)(b) son, § 87(2)(b) § 87(2)(b) who wanted to go to the hospital. § 87(2)(b) was screaming at his son when three uniformed officers approached him, identified by the investigation as PO Gregory Kennedy, PO Alberys Garcia, and Sgt. Gabriel Diaz.

§ 87(2)(b) did not recall what the officers said to him, but he stated that neighbors were holding him back in order to keep him from being arrested. § 87(2)(b) walked away from the scene and rode with a friend to § 87(2)(b), arriving at about 8:00 p.m. § 87(2)(b) waited in the emergency room waiting area until about 8:25 p.m., chatting with neighbors. He was talking with the mother of the victim, who wanted to go into the emergency room area to see her son. PO Kennedy, PO Garcia, and Sgt. Diaz approached § 87(2)(b) and

the mother. One of the officers told the mother that she could not go into the emergency room area. § 87(2)(b) told the officer that the mother could go see her son because it was her son and she was allowed to do so by the hospital rules. The officer told § 87(2)(b) to sit down and asked him if he was a relative of the victim. When he said no, they told him that he had to get out. He asked why he had to get out. PO Kennedy and PO Garcia each grabbed § 87(2)(b) by one shoulder and walked him out of the hospital. PO Kennedy told § 87(2)(b) “Don’t come back in the fucking hospital.” At a later point in his interview, § 87(2)(b) alleged that PO Kennedy instead said, “Don’t bring your ass back in the fucking hospital.”

The officers walked back inside, and § 87(2)(b) went back into the front alcove and told his wife to go get the officers’ badge numbers and names. The three officers were walking up the hall toward the emergency room. § 87(2)(b) followed them, and then the officers noticed her and observed § 87(2)(b) telling her to get their names and badge numbers. § 87(2)(b) had entered the hospital again. As § 87(2)(b) followed his wife, who was following the officers, the three officers turned around, came back, grabbed § 87(2)(b) and brought him outside the hospital again. PO Kennedy put § 87(2)(b) against the wall and said, “I told you, motherfucker, you’re going to get arrested.” § 87(2)(b) told PO Kennedy to go ahead and arrest him, since he was supporting his neighbor’s son. PO Kennedy replied, “I don’t give a fuck.” § 87(2)(b) was transported to the 44th Precinct stationhouse. On the way, § 87(2)(b) told PO Kennedy that he had chest pains and wanted to go to the hospital. PO Kennedy said that he was not taking him to the hospital. At the stationhouse, § 87(2)(b) continued to tell PO Kennedy that he wanted to go to the hospital, as PO Kennedy accused § 87(2)(b) of acting. An ambulance was called and transported § 87(2)(b) to § 87(2)(b).

- Witness:** § 87(2)(b)
- § 87(2)(b) is a § 87(2)(b) black female who has brown eyes and black hair. She is 5’11” tall and weighs 185 pounds. She is § 87(2)(b), at § 87(2)(b) in the Bronx.

On December 2, 2010, § 87(2)(b) was interviewed at the CCRB (encl. 6A-D). § 87(2)(b), § 87(2)(g)

At 8:30 p.m., § 87(2)(b) and § 87(2)(b) were at § 87(2)(b) and tried to escort the mother of the gunshot victim to the emergency room so that she could see her son. They were prevented from entering the emergency area by a short Hispanic male officer in uniform named either “Diaz” or “Garcia.” § 87(2)(b) told the officer that he had to let the mother go back there. The officer replied that he did not have to let her go. § 87(2)(b) offered to speak to the hospital administration about this, and added that he would speak to the officer’s sergeant and stated that he “knew people.” and knew “the procedures.” There were two other officers in the hallway area at this time. § 87(2)(b) identified the three officers as “Garcia,” “Diaz” and “Kennedy.”

The three officers started pushing § 87(2)(b) down the hallway and out the door, saying that he had to leave the hospital. As they pushed him out of the front door, § 87(2)(b) said loudly, “Oh, okay, Gonzalez. I got your name. What’s your badge number?” § 87(2)(b) later stated that she was not sure if the officer’s name was “Gonzalez” or “Garcia.” In response to § 87(2)(b)’s question, PO Garcia said, “588.”

§ 87(2)(b) told her husband to stay there, between the two front doors of the hospital, and said that she would go get the officers’ shield numbers. She found a piece of gauze on the ground, and a passerby handed § 87(2)(b) a pen. Taking the gauze and the pen, § 87(2)(b) approached the officers inside the hospital while her husband stayed between the two doors of the entrance alcove. When she approached the officers, she said, “Hey, let me get y’all--,” intending to request

their names and shield numbers. PO Garcia interrupted § 87(2)(b) to tell the other officers that they should arrest § 87(2)(b). They started walking back down to the front alcove area and pulled § 87(2)(b) out of the hospital again. § 87(2)(b) started reading the officers' names and badge numbers as they did this, which § 87(2)(b) recorded on the gauze. (This was how she obtained the names and shield numbers provided in the initial complaint). Outside the hospital, PO Kennedy pushed § 87(2)(b) up against the wall with both hands, so that § 87(2)(b) "bounced" off the wall. The officers handcuffed § 87(2)(b) and put him into a marked van.

NYPD Statements

Subject Officer: PO GREGORY KENNEDY

- *PO Kennedy is a § 87(2)(b)-old black male who has black hair and brown eyes. He is 6'4" tall and weighs 230 pounds.*
- *On November 22, 2010, PO Kennedy worked from 5:30 p.m. until 2:05 a.m. the next day. He was dressed in uniform and assigned to a foot post with PO Anthony Johnson.*

Memo Book Entries

PO Kennedy's memo book entries record that at 8:39 p.m. on November 22, 2010, one arrest was made at § 87(2)(b) (encl. 7A-B).

Arrest Report and Complaint Report

PO Kennedy prepared the complaint report and arrest report for § 87(2)(b) which state that while officers were investigating a shooting, § 87(2)(b) impeded the officers from conducting the investigation by walking repeatedly through the crime scene, and when officers approached § 87(2)(b) he adopted a fighting stance (encl. 8A-E).

CCRB Statement

On March 23, 2011, PO Kennedy was interviewed at the CCRB (encl. 9A-C). At 6:50 p.m. on November 22, 2010, PO Kennedy and PO Johnson were at their foot post when they received a report of a triple shooting near § 87(2)(b) in the Bronx. PO Kennedy and PO Johnson responded and went to the rooftops to prevent "airmail"—or individuals throwing items down onto the officers below. PO Kennedy later learned that § 87(2)(b) had some kind of altercation or argument with officers at the crime scene, but he did not witness this himself. PO Kennedy was informed of this by PO Garcia, following the incident.

At approximately 8:30 p.m., PO Kennedy and PO Johnson went to § 87(2)(b), to the waiting room area of the emergency room. There were about fifteen civilians in the area. Sgt. Diaz and PO Garcia were already there; there were no further NYPD officers present. When PO Kennedy entered the waiting room area, he noticed Sgt. Diaz and PO Garcia asking an individual, later identified as § 87(2)(b) to leave the hospital. § 87(2)(b) was refusing, stating that it was a public hospital and that he should not have to leave. § 87(2)(b) was angry and was raising his voice. PO Kennedy did not, at that time, know why Sgt. Diaz was asking § 87(2)(b) to leave. PO Kennedy did not see Sgt. Diaz ask any other individuals in the emergency waiting room area to leave. All four officers walked with § 87(2)(b) out of the hospital. § 87(2)(b) cooperated by walking out of the hospital with the officers. PO Kennedy did not recall if any of the officers put a hand on § 87(2)(b)'s arm to assist in leading him out. § 87(2)(b) was told that he would be arrested if he tried to re-enter the hospital; however, PO Kennedy did not recall which officer told him this. PO Kennedy did not recall using any profanity towards § 87(2)(b) and did not recall making the statements "Don't come back into the fucking hospital," or "Don't bring your ass back into the fucking hospital."

Sgt. Diaz told PO Kennedy to arrest § 87(2)(b) for refusing to comply with a lawful order if he tried to enter the hospital again. The officers began canvassing the emergency waiting room area to identify additional witnesses or victims. Within five minutes, § 87(2)(b) walked back into the hospital with § 87(2)(b) was yelling at § 87(2)(b) to get the officers' names and shield numbers. § 87(2)(b) approached PO Kennedy and wrote down his shield number and his name. PO Kennedy did not verbally state his name or shield number, but he held his badge towards her so that she could clearly see his name and shield number. PO Kennedy did not see § 87(2)(b) ask any other officers directly for their names or shield numbers, but stated that all four officers were standing in the general area.

As § 87(2)(b) had entered the hospital again, PO Kennedy and PO Johnson approached § 87(2)(b) to place him under arrest. When § 87(2)(b) noticed the officers, he went back outside, as the officers followed. None of the officers made any physical contact with § 87(2)(b) inside the hospital. Outside, they placed him under arrest. PO Kennedy handcuffed § 87(2)(b) who was compliant with being cuffed. PO Kennedy did not push § 87(2)(b) up against the wall. He did not tell him, "I told you, motherfucker, you're going to get arrested."

PO Johnson and PO Kennedy transported § 87(2)(b) to the stationhouse. § 87(2)(b) said that he had heart problems and was going to "go sick" so that the officers would have to bring him back to § 87(2)(b). At the stationhouse, an ambulance was called for § 87(2)(b). PO Kennedy did not recall what hospital the ambulance took § 87(2)(b) to, but stated that it was not § 87(2)(b). Once § 87(2)(b) realized that he was going to be financially liable for the medical treatment he received at the hospital, he stated that he was no longer sick and wanted to go back to the stationhouse. PO Kennedy did not go with § 87(2)(b) to the hospital. PO Kennedy did not recall ever using profanity toward § 87(2)(b).

Witness Officer: SGT. GABRIEL DIAZ

- Sgt. Diaz is a § 87(2)(b)-old Hispanic male who has brown eyes and black hair. He is 5'5" tall and weighs 150 pounds.
- On November 22, 2010, Sgt. Diaz worked from 5:15 p.m. until 2:12 a.m. the next day in uniform. He was the Impact supervisor and worked with PO Garcia in marked RMP #4580.

Memo Book Entries

Sgt. Diaz's memo book entries record that at 6:40 p.m., he responded to a radio code 10-10 for shots fired in front of § 87(2)(b) in the Bronx (encl. 10A-B). At 6:45 p.m., it was confirmed that three males had been shot at the location.

CCRB Statement

On March 8, 2011, Sgt. Diaz was interviewed at the CCRB (encl. 11A-B). At approximately 6:40 p.m. on November 22, 2010, Sgt. Diaz responded to a radio for shots fired at § 87(2)(b) in the Bronx. He observed two males with gunshot wounds. Sgt. Diaz designated the area as a crime scene and ordered the area to be cordoned off for the investigation. There were numerous civilians around, including § 87(2)(b) who identified himself as the father of one victim. He seemed very upset and irate. Believing that § 87(2)(b) was a distraught family member of a victim, Sgt. Diaz allowed him to remain at the scene for a few minutes. After the crime scene had been cordoned off, Sgt. Diaz and PO Garcia asked § 87(2)(b) to move back so as not to disrupt the active investigation. § 87(2)(b) refused to leave and said that the officers could not touch him and could not "do shit." PO Garcia and another officer escorted § 87(2)(b) from the crime scene. § 87(2)(b) then attempted to get back into the crime scene. When officers prevented him, § 87(2)(b) adopted a boxing stance, with his fists up, toward Capt. Brian Sayre. Other civilians then intervened and escorted

§ 87(2)(b) away from the scene. As Sgt. Diaz believed that § 87(2)(b) was the father of one of the gunshot victims and was distraught on behalf of a relative, he used his discretion and did not arrest him for interfering with the investigation.

About two hours later, Sgt. Diaz encountered § 87(2)(b) again at § 87(2)(b) in the family waiting room area inside the emergency room. § 87(2)(b) was irate and cursing. PO Garcia informed Sgt. Diaz that § 87(2)(b) was not related to any of the victims. As there was a crowd of ten to fifteen people gathering inside the hospital, Sgt. Diaz directed everyone who was not related to the victims to leave. § 87(2)(b) refused to leave and was irate and cursing. As he refused to leave, PO Garcia, PO Kennedy, and PO Johnson escorted § 87(2)(b) from the hospital by placing hands on his arms and elbows and leading him out. § 87(2)(b) walked out with the officers, but then about five minutes later, § 87(2)(b) came back into the hospital and continued to behave in an irate manner and use profanity. Sgt. Diaz asked § 87(2)(b) again to step out of the hospital, and § 87(2)(b) refused. Sgt. Diaz determined that § 87(2)(b) would be placed under arrest § 87(2)(a) 160.50 outside of § 87(2)(b) and § 87(2)(a) 160.50 at § 87(2)(b). He gave the order to PO Kennedy, PO Garcia, and PO Johnson to arrest him. Noticing Sgt. Diaz, § 87(2)(b) ran out of the hospital. PO Kennedy, PO Garcia, and PO Johnson followed § 87(2)(b) outside, while Sgt. Diaz remained in the emergency room. Through the glass door, Sgt. Diaz observed the officers ordering § 87(2)(b) to put his hands behind his back outside the hospital. § 87(2)(b) complied with this and was handcuffed. There was no struggle to arrest § 87(2)(b). Sgt. Diaz never heard any officer use profanity toward § 87(2)(b).

Witness Officer: PO ALBERYS GARCIA

- PO Garcia is a § 87(2)(b)-old Hispanic male who has brown eyes and brown hair. He is 5'9" tall and weighs 185 pounds.
- On November 22, 2010, PO Garcia worked from 5:30 p.m. until 2:05 a.m. the next day in uniform. He was the recorder for Sgt. Diaz and was assigned to marked RMP #4580.

Memo Book Entries

PO Garcia's memo book entries record that at 6:50 p.m., he responded to a report of shots fired at § 87(2)(b) (encl. 12A-C). Three males were shot. At 8:39 p.m., one arrest was made § 87(2)(a) 160.50 in front of § 87(2)(b). The perpetrator did not allow officers to conduct an investigation.

CCRB Statement

On March 10, 2011, PO Garcia was interviewed at the CCRB (encl. 13A-C). At 6:50 p.m. on November 22, 2010, PO Garcia and Sgt. Diaz were on patrol when they received a report of shots fired near § 87(2)(b) in the Bronx. When they arrived, they observed two injured males who had sustained gunshot wounds. Sgt. Diaz designated the area a crime scene. There were numerous civilians crowded around the area. PO Garcia noticed one male, later identified as § 87(2)(b) walking through the crime scene and appearing distraught. § 87(2)(b) stated that he was looking for his son. PO Garcia brought § 87(2)(b) to where he could view the two male victims of the gunshot wounds and asked § 87(2)(b) if either of the males was his son. § 87(2)(b) stated that neither was his son. PO Garcia directed § 87(2)(b) to move back, as the officers needed to secure the crime scene, but § 87(2)(b) ignored PO Garcia's order and walked through the crime scene at least three times, after officers had established the boundaries with police tape. At one point, PO Garcia grabbed § 87(2)(b)'s arm and told him that he needed to leave the crime scene. § 87(2)(b) pushed PO Garcia's hand away and kept walking, saying that PO Garcia could not tell him what to do.

Capt. Sayre instructed § 87(2)(b) to leave the crime scene. Capt. Sayre held his hand up at § 87(2)(b) when he said this, and § 87(2)(b) pushed Capt. Sayre's hand down and adopted a fighting stance. PO Garcia and some other officers attempted to arrest § 87(2)(b) at that point, but Capt. Sayre told PO Garcia and the officers to return to the crime scene to preserve its integrity, get a description for the perpetrators, and to disregard arresting § 87(2)(b).

At 8:30 p.m., PO Garcia and Sgt. Diaz were at § 87(2)(b) in regards to a possible perpetrator at the location. When they arrived at § 87(2)(b) they went to a small waiting area. PO Kennedy and PO Johnson were there, as was a small crowd of about 10 people. § 87(2)(b) was there, being loud and tumultuous. As it is disruptive to an investigation to have too many people around, Sgt. Diaz told the people in the crowd that if they were not family members of the victims, they needed to leave. He also said this to § 87(2)(b) who responded, "Fuck this," and added that the hospital was a public place and they could not tell him what to do.

PO Garcia, PO Johnson, and PO Kennedy escorted § 87(2)(b) out of the hospital. They walked next to him, as he cooperated by walking. PO Garcia did not tell § 87(2)(b) that he would be arrested if he came back inside the hospital. PO Garcia never heard PO Kennedy curse at § 87(2)(b). About one minute after he had been escorted out, § 87(2)(b) came back in and walked into the lobby. The officers noticed § 87(2)(b) and Sgt. Diaz gave the order to arrest § 87(2)(b). When they approached him, § 87(2)(b) walked outside, where he was arrested. § 87(2)(b) was cooperative with being handcuffed.

Medical Records

§ 87(2)(b) was admitted to § 87(2)(b) at § 87(2)(b) on § 87(2)(b) (encl. 14A-Y). He stated that he was suffering chest pain and shortness of breath, as well as pain in his arm and tingling in his fingers. § 87(2)(b) stated that he drank two beers. The pain to his hand resolved after his handcuffs had been loosened. He was administered tablets of acetaminophen-oxycodone, aspirin, and cardizem. No signs of injury were noted. He was discharged at § 87(2)(b) on § 87(2)(b), to police custody.

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of March 24, 2011, with regard to the incident (encl. 20A).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2A).

Subject Officer CCRB History

- PO Gregory Kennedy has been a member of the service for one year, and there are no substantiated CCRB allegations against him (encl. 1A).

Conclusion

Identification of Subject Officers

- PO Kennedy was identified by name and physical description, and he confirmed his interaction with § 87(2)(b)

Allegations Not Pleaded

- Although § 87(2)(b) and § 87(2)(b) stated that officers refused to provide their names and shield numbers, § 87(2)(b) identified the three officers by name as PO Kennedy, PO Garcia, and “PO Diaz” (instead of Sgt. Diaz) when he filed his complaint. Furthermore, § 87(2)(b) correctly provided PO Kennedy’s tax number as 948364 and PO Garcia’s shield number as 27908 when he called the CCRB. Though § 87(2)(b) alleged that “PO Diaz” hid his badge by turning his back and walking away and never provided his shield number, § 87(2)(b) stated in her CCRB interview that PO Garcia provided his shield number as “588.” This is actually Sgt. Diaz’s shield number. § 87(2)(g)
- § 87(2)(b) alleged that PO Kennedy pushed § 87(2)(b) up against the wall with both hands, so that § 87(2)(b) “bounced” off the wall, but § 87(2)(b) did not allege this in his CCRB interview, § 87(2)(g)

Investigative Findings and Recommendations

Allegation A) Discourtesy: PO Gregory Kennedy spoke obscenely and rudely to § 87(2)(b)

§ 87(2)(b) initially alleged in his call to the CCRB that PO Kennedy said to him, “I told you not to fucking come back in the hospital. Now your motherfucker ass is under arrest.”

§ 87(2)(b), § 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____

Title/Signature

Print

Date